

Model IRAC Essay Answer

This model answer is based on the fact pattern for the sixth question in the week 1 quiz. That fact pattern reads as follows:

Facts: P owns a house at the front of a 10-acre lot. D moved into a house on a small lot at the back of P's lot. D is 92 years old and uses an electric wheelchair. Therefore, D needs a ramp to get into D's new house. But the house did not come with a ramp. So the day that D moved in, D had workers install a ramp to the front door. It was the only place on the house where a ramp could easily be installed. P noticed the ramp and believed that the end of it extended about two feet onto P's property. So P sued D. And P asked the court for a preliminary injunction requiring D to remove the ramp during the litigation.

The judge held a preliminary injunction hearing, at which the following evidence emerged. D testified that she believes the ramp is entirely on her property. D also testified that she would not be able to enter her house without the ramp, forcing her to live somewhere else, and that if a different ramp needed to be installed, she would have to spend thousands of dollars to cut a new door into the other side of her house, which would take at least a month. D testified that the current metal ramp can be easily packed up and removed, because it is not permanently embedded in the ground. In turn, P testified that he believes the ramp extends a few feet onto his property. P also testified that it is at the back of his property, and he couldn't remember the last time he had been in that corner of his lot before D moved in (someone else cut P's grass).

Question: You are a clerk for the judge in the case. The judge tells you that she thinks each side has an equal chance of winning the case in the end, and the case would certainly take at least a few months to litigate, because expert surveyors would have to survey the land. The judge then asks you to write a short memo assessing whether she should grant the preliminary injunction requiring D to remove the ramp. (You should assume that the court will use the same rules for preliminary injunctions as a federal court.)

Model Answer:

The issue is whether the court should grant a preliminary injunction.

To determine whether to grant a preliminary injunction, the court will apply the four-factor *Winter* test. Under that test, the plaintiff must show: (1) likelihood of success on the merits; (2) likelihood of irreparable injury if there is no preliminary injunction; (3) the balance of equities tips in plaintiff's favor; and (4) the public interest favors a preliminary injunction. An injunction is also ultimately at the equitable discretion of the court, and the court's goal is to maintain the status quo long enough for the court to decide the case.

In this case, the court should not grant P's request for a preliminary injunction. Applying the

four-factor test:

(1) At the first prong of the test, both parties are equally likely to succeed on the merits. Whether to grant a preliminary injunction therefore depends on the other prongs of the test.

Notably, though, courts do apply a sliding scale, in which greater likelihood of success on the merits might require less of a showing of harm. So here, because P is not overwhelmingly likely to win on the merits, P might need to show a relatively significant amount of injury to justify a preliminary injunction.

(2) At the second prong of the test, P cannot show an irreparable injury. P's only injury from the ramp appears to be mild annoyance. Indeed, P hardly ever even visits that part of P's property. So D's ramp isn't really affecting P's daily life at all. If the ramp is allowed to stay in place during the course of the trial, it would at most slightly annoy P. And being slightly annoyed during the course of the trial would not seem to constitute an irreparable injury, i.e., an injury that cannot later be repaired. If P ends up winning the case, the court can always award P some monetary damages to compensate for the annoyance.

Because P cannot show an irreparable injury, which is a requirement for a preliminary injunction, P should not receive a preliminary injunction.

(3) Even if P could show an irreparable injury at prong 2 of the test, P would also likely lose at prong 3 of the test. That is because the balance of the equities clearly tips strongly in D's favor.

To balance the equities, courts analyze both the nature and the extent of the injuries that would be suffered by each party if the court either grants or denies the preliminary injunction.

Here, as just explained at prong (2), if the court doesn't grant a preliminary injunction, P's only injury would be mild annoyance about the ramp. That is a quite small injury, and not an irreparable one.

In contrast, if the court does grant a preliminary injunction, then D will be significantly and irreparably harmed during the course of the trial. If the court orders D to remove the ramp, D will not be able to enter and exit the home, forcing D to find somewhere else to live. D could cut a new door in the house and build a new ramp, but that would cost significant money, it would take at least a month, and it would irrevocably alter the house itself. That cost in money and time is significant. And in the meantime, D will be rendered unable to use her own house. The court case will likely take at least a few months, which is a long time to be unable to use your own house! And that injury seems irreparable: If D ends up winning the case, and is allowed to reinstall the ramp, the court can't just hop in a time machine, go back in time, and let D use her house all along. And just giving D some monetary damages afterward doesn't fix the time that D spent without a usable home.

Consequently, the balance of the equities clearly tips in favor of leaving the ramp in place while the litigation plays out.

(4) At the fourth prong of the test, it isn't clear that the public interest weighs in one direction or another here. This is a dispute between two private parties, about a small physical feature on their private land, so the presence or absence of the ramp doesn't likely impact anyone other than P and D. The public, of course, has an interest in enforcing the law, but until we litigate the case, it isn't clear whether D is violating P's property rights, or if removing the ramp might violate D's property right to have access to her own home. So this prong of the test doesn't make a significant difference.

In conclusion, the second and third prongs of the test should prevent P from getting a preliminary injunction. P can't even show that P would experience an irreparable injury, and even if P could, the balance of equities clearly tips in D's favor. The court should therefore deny the preliminary injunction and allow D to keep her ramp in place while the litigation plays out.